

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ELIJAH ALEXANDER,

Plaintiff,

-against-

POLICE OFFICER GERARD CASH, Shield No. 18279,
POLICE OFFICER SALVATOR MELORE, Shield No.
2092, POLICE OFFICER KONRAD ZAKIEWICZ, and
SERGEANT RICARDO OTERO,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
June 10, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER GERARD CASH, Shield No. 18278, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237
POLICE OFFICER SALVATORE MELORE, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237
POLICE OFFICER KONRAD ZAKIEWICZ, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237
SERGEANT RICARDO OTERO, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ELIJAH ALEXANDER,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER GERARD CASH, Shield No. 18279,
POLICE OFFICER SALVATOR MELORE, Shield No.
2092, POLICE OFFICER KONRAD ZAKIEWICZ, and
SERGEANT RICARDO OTERO,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff ELIJAH ALEXANDER, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. On June 13, 2015, at approximately 12:30 a.m., plaintiff was lawfully in the vicinity of 672 Williams Avenue, Brooklyn, New York, when the individually named New York City police officer defendants, unlawfully stopped, questioned, frisked, searched, falsely imprisoned, unlawfully seized, and falsely arrested plaintiff. Thereafter, the officers maliciously prosecuted plaintiff and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information about plaintiff. Those officers that did not arrest plaintiff are liable for failing to intervene and stop the unlawful conduct against claimant that was being committed by their fellow officers. All criminal charges against plaintiff were dismissed and sealed on or about June 18, 2015. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

PARTIES

2. Plaintiff ELIJAH ALEXANDER is a resident of the state of New York.
3. POLICE OFFICER GERARD CASH, Shield No. 18278, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER GERARD CASH, Shield No. 18278, is and was at all times relevant herein, assigned to the Brooklyn North Anti-Crime Squad.
5. POLICE OFFICER GERARD CASH, Shield No. 18278, is being sued in his individual and official capacity.
6. POLICE OFFICER SALVATORE MELORE is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. POLICE OFFICER SALVATORE MELORE is and was at all times relevant herein, assigned to the Brooklyn North Anti-Crime Squad.
8. POLICE OFFICER SALVATORE MELORE is being sued in his individual and official capacity.
9. POLICE OFFICER KONRAD ZAKIEWICZ is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. POLICE OFFICER KONRAD ZAKIEWICZ is and was at all times relevant herein, assigned to the Brooklyn North Anti-Crime Squad.
11. POLICE OFFICER KONRAD ZAKIEWICZ is being sued in his individual and official capacity.
12. SERGEANT RICARDO OTERO is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. SERGEANT RICARDO OTERO is and was at all times relevant herein, assigned to the Brooklyn North Anti-Crime Squad.
14. SERGEANT RICARDO OTERO is being sued in his individual and official capacity.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees

of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On June 13, 2015, at approximately 12:30 a.m., plaintiff was lawfully in the vicinity of 672 Williams Avenue, Brooklyn, New York, when the individually named New York City police officer defendants proceeded to unlawfully stop, question, frisk, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

20. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

21. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on June 13, 2015, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind.

22. Nevertheless, the defendant police officers unlawfully stopped, questioned, frisked, searched, and handcuffed plaintiff and falsely arrested him without legal justification or probable cause.

23. The individually named police officers unlawfully searched plaintiff's person without probable cause or any legal justification and did not locate any illegal drugs, weapons or contraband as a result of the search.

24. Plaintiff was unlawfully transported to the 75th precinct by the defendant police officers.

25. Upon arrival at 75th precinct, the defendant police officers photographed, fingerprinted and placed plaintiff in a holding cell.

26. On or about June 13, 2015, plaintiff was transported from the 75th precinct to Brooklyn Central Booking.

27. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by defendant police officer Gerard Cash in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, and as a result plaintiff was falsely charged with Criminal Possession of a Weapon.

28. Specifically, defendant police officer Cash signed a criminal court complaint falsely stating that he observed plaintiff to be in possession of a weapon when in fact it he did not actually observe plaintiff to be in possession of a weapon.

29. Further, defendant police officer Cash falsely stated to the Brooklyn District Attorney's Office that plaintiff was in possession of said weapon.

30. On or about June 13, 2015, after approximately 22 hours in custody, plaintiff was arraigned in Kings County Criminal Court and bail was set in the amount of \$1,500.

31. Plaintiff was unable to post bail and therefore was remanded to the custody of the Department of Correction.

32. On or about June 14, 2015, plaintiff was transported to Riker's Island.

33. On or about June 15, 2015, at approximately 3:00 p.m., plaintiff was able to post bail and was released Riker's Island.

34. On June 18, 2015, plaintiff was forced to appear in Court and all charges were dismissed and sealed.

35. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, and denial of fair trial and due process rights to plaintiff.

36. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

41. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

47. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

59. Plaintiff repeats and realleges paragraphs 1 through 58 as if fully set forth herein.

60. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

61. Defendants commenced and continued a criminal proceeding against plaintiff.

62. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

63. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

64. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 66 with the same force and effect as if fully set forth herein.

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Brooklyn County District Attorney's Office.

69. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Brooklyn County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Brooklyn County District Attorney's Office.

71. In withholding/creating false evidence against plaintiff Elijah Alexander and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

72. As a result of the foregoing, plaintiff Elijah Alexander, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Failure to Intervene

75. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff Elijah Alexander demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 10, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER GERARD CASH, Shield No. 18278, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237
POLICE OFFICER SALVATORE MELORE, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237
POLICE OFFICER KONRAD ZAKIEWICZ, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237
SERGEANT RICARDO OTERO, Brooklyn North Anti-Crime Squad, 179 Wilson Avenue, Brooklyn, NY 11237

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 10, 2018

/s/
STUART E. JACOBS